

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN NEPAL

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Nepal, grounded in the three-tier environmental assessment system under the Environment Protection Act, the mandatory public hearing, the powers of local government under federalism, and a Supreme Court with an exceptional record in environmental cases

This guide uses the Nepali legal terms you will actually encounter (the Brief Environmental Study, the IEE and the EIA, the Terms of Reference, the environment management plan, the recommendation of the local level, the public hearing, the writ petition and public interest litigation, and so on), each explained in plain language where it first comes up. The 2019 Act and 2020 Rules replaced the older framework and devolved much of it; the core mechanics below apply, but check which level of government is deciding your project.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. Nepali terms are given with a short English gloss.

A note on money. Budgets in this guide are in Nepali rupees (NPR). Every figure is indicative — Nepali community campaigns are frequently run at very low cost, because the decisive route is a writ petition and the country has a strong public-interest bar.

A note on what makes this system unusual. Two things. First, **the public hearing is mandatory at every level of assessment**, and the report must be displayed at the **ward office and the project site**, not merely in Kathmandu. Second, Nepal's **Supreme Court** has gone further than most courts anywhere: it has halted a national airport project, ordered the government by mandamus to pass a climate law, struck down statutory provisions permitting construction inside protected areas, and described large-scale destruction of a mountain range as amounting to **ecocide**.

TABLE OF CONTENTS

1. **INTRODUCTION & FRAMEWORK** — Why this matters, how this works, what to realistically expect
2. **HOW THE SYSTEM WORKS** — Who decides, how a decision is made, and the words you'll need
3. **QUICK REFERENCE: SUCCESS RATES** — Effectiveness by step and combined, with real-world grounding
4. **STEP 1: TARGET IDENTIFICATION** — What you're fighting, who controls it, when the decision is final
5. **STEP 2: DOCUMENTATION** — How to prove harm (three documentation layers)
6. **WHAT TO GATHER, AND WHERE TO FIND IT** — The records that win cases, and how to get them
7. **STEP 3: BUILDING LOCAL OPPOSITION** — How to organise (Foundation → Public Launch → Coalition → Escalation)
8. **STEP 4: LEGAL CHALLENGES** — The assessment, the local level, and the Supreme Court
9. **TURNING YOUR EVIDENCE INTO ARGUMENTS** — Matching each fact to the ground that wins
10. **STEP 5: MEDIA STRATEGY** — How to generate coverage
11. **EMAILS & LETTERS** — Ready-to-use messages communities can copy and send
12. **IF YOU HAVE LITTLE TIME OR FEW RESOURCES** — The rapid-fire version
13. **WHEN THE SYSTEM IS TILTED** — When opposition faces systemic barriers
14. **WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED** — Reading capture actor by actor
15. **INTEGRATION & TIMELINE** — How all five steps work together over a 12-month campaign
16. **FINAL ASSESSMENT** — Realistic outcomes, when to continue, when to reassess

INTRODUCTION & FRAMEWORK

Why This Matters

Community action changes project outcomes in Nepal, and the country's Supreme Court has demonstrated repeatedly that it will act on environmental grounds. **Article 30** of the Constitution guarantees every citizen the **right to live in a clean and healthy environment** as a fundamental right, and **Article 51** obliges the State to protect the environment and prioritise conservation of biodiversity. Since the **Godavari Marble** case the Court has treated the right to a clean

environment as **intrinsic to the right to life**, reasoning that living in a polluted environment inevitably harms health and that the State, as guardian of citizens' interests, must protect it.

What the Court has done with that doctrine is striking. It **halted the Nijgadh international airport project**, which would have required felling thousands of trees. In the **Chure** litigation — against a budget provision authorising extraction and export of stone, gravel and sand from an ecologically critical range whose degradation was accelerating flooding and desertification in the Terai — it held that **environmental sustainability is the most fundamental principle of Nepal's constitution and no economic activity can bypass it**, characterised the destruction as **ecocide**, and **stopped the export of riverine materials nationwide until protective legislation was enacted**. In a climate case it issued **mandamus ordering the government to pass and implement a climate change law**. And in 2025 a **constitutional bench** declared provisions permitting construction inside **Protected Areas** unconstitutional from the outset. Public interest litigation has been available since the 1990s, and citizens and organisations use it.

The administrative system underneath has also been rebuilt. The **Environment Protection Act, 2019** and the **Environment Protection Rules, 2020** replaced the 1997 framework and made three important changes for communities. They added a third, lighter tier — the **Brief Environmental Study** — alongside the **Initial Environmental Examination** and the full **Environmental Impact Assessment**. They **devolved assessment and approval to provincial and local governments** for projects executed at those levels, which means the decision-maker may now be your own municipality. And they made the **public hearing mandatory at every level of assessment**, where previously it attached principally to EIA. The proponent must publish a notice in a **national newspaper**, display the report at the **local government office, the ward office and the project site**, and hold a **public hearing in the project-affected area** — and a **recommendation from the local level** is among the documents required.

The honest counterweight is real. Assessments are proponent-funded through licensed consultants, and their quality is widely criticised. Devolution has outrun capacity: many local governments approve projects without the technical staff to assess them. Hydropower, roads, quarrying, cable cars, airports and transmission are advancing rapidly across fragile Himalayan and Chure terrain, approvals have issued on assessments later shown defective, and the Court's remedies depend on agencies that comply slowly.

What "winning" realistically means. Sometimes an outright halt — Nepal's Supreme Court has done exactly that to a national airport. More often: an approval **refused, conditioned or quashed**; a project pushed from a Brief Study or IEE onto a **full EIA**; a **hearing actually held in the affected area** rather than skipped; a **local government recommendation withheld**; an interim order stopping works; **restoration and compensation** ordered; or an approval that **lapses** because implementation never began. The realistic goal is to make the hearing real, use the local level, and be ready to file.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — establish the tier, the deciding level of government, and the hearing date.
2. **Documentation** — build a record strong enough for the hearing, the approving authority and the Supreme Court.
3. **Local opposition** — organise so the mandatory hearing is filled and the local level hears you.
4. **Legal challenges** — the assessment, the recommendation, and the writ petition.
5. **Media strategy** — coverage that raises the cost and reaches the public-interest bar.

No single step wins alone. In Nepal the combination that works is **a well-used mandatory hearing plus a constitutional writ**.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Nepal's tilt is capacity and pace: proponent-funded studies, newly-empowered local governments without technical staff, and rapid infrastructure expansion in fragile terrain. Assessing that honestly helps you choose the right tools: the strongest routes are **insisting the mandatory hearing be held in the affected area, contesting the tier**, using the **local level's recommendation**, and filing a **writ petition** grounded in Article 30. Section 13 deals honestly with tilted situations.

How to use this guide

Read Sections 1–3 once, and Section 4 immediately if a project has been announced — the notice and hearing dates are short. Sections 5–7 run in parallel. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13

helps you judge how far to take it.

HOW THE SYSTEM WORKS

Before you can fight a project you have to know who decides it, how, and the words the system uses. Since the 2015 Constitution Nepal is a **federal republic** with three tiers of government — **federal, provincial, and local** — and the local tier comprises municipalities and rural municipalities subdivided into **wards**. That structure now runs through environmental assessment itself: the **Environment Protection Act, 2019** and the **Environment Protection Rules, 2020** empowered **provincial and local governments to conduct and approve** assessments for projects executed at their level.

The bodies that decide — and what each one controls

The Ministry of Forests and Environment. The federal environment ministry, and the approving authority for **Environmental Impact Assessments** of major projects. It also sets the framework within which the other tiers operate.

Sectoral ministries. Depending on project type and scale, the concerned sectoral ministry may approve an **Initial Environmental Examination** — so the approving body is not always the environment ministry.

Provincial governments. Empowered to conduct and approve assessments at provincial level.

Local governments — municipalities, rural municipalities and wards. The most important change for communities. The local level approves assessments for proposals at its own level, hosts the **display of the report at the local government and ward offices**, and issues the **recommendation of the local level** required in the file. A municipality that declines to recommend is a serious obstacle.

Licensed environmental consultants. Studies must be prepared by licensed consultants engaged by the proponent — their licence status is checkable.

The Supreme Court. The decisive forum: it hears **writ petitions**, including **public interest litigation**, and exercises constitutional jurisdiction under which it has struck down statutory provisions from the outset, with a **constitutional bench** led by the Chief Justice on constitutional questions.

Which one is "yours"? Ask: which **tier of assessment** — Brief Environmental Study, IEE or EIA? Which **level of government** approves it — federal ministry, sectoral ministry, province, or your own municipality? Which **ward** hosts the display and the hearing? Has the **local recommendation** been sought or given? Pinning this down is Step 1.

How a decision is actually made — the journey of a project

Under the Act and Rules the path is roughly:

1. **Screening.** Any proposal likely to cause environmental impacts must undergo assessment. The Rules' schedules determine whether it needs a **Brief Environmental Study** (the lightest tier, added in 2019), an **Initial Environmental Examination** for medium-scale projects, or a full **Environmental Impact Assessment** for large-scale projects with significant impacts. **The tier decides the depth of scrutiny**, making it the most consequential early move. Policies and programmes specified by Gazette notification undergo **Strategic Environmental Analysis**.
2. **Terms of Reference.** For the fuller tiers the proponent submits a **Terms of Reference** defining scope, boundaries and issues, which the approving authority must **approve before the study begins**. Narrow terms produce a narrow study, so this is worth influencing.
3. **The study.** A **licensed environmental consultant** conducts baseline collection, impact prediction and mitigation planning across physical, biological, socio-economic and cultural impacts.
4. **Public notice and display.** The proponent must **publish a notice in a national newspaper** inviting comments and **display the report at the local government office, the ward office and the project site**. Notice periods are short — historically fifteen days — so watch for them.
5. **The public hearing — mandatory at every level.** A **public hearing must be conducted in the project-affected area**, and under the 2019/2020 framework this applies to **all levels of environmental assessment**, not only EIA. This is the community's guaranteed moment, and a hearing held elsewhere, or not held at all, is a defect worth recording.
6. **Local recommendation.** Among the documents required is a **recommendation from the local level** — a genuine point of leverage, since it puts your own municipality or ward in the chain.
7. **Review and approval.** The approving authority — the environment ministry, a sectoral ministry, or the provincial or

local government — approves or rejects. Statutory timelines are short, historically twenty-one days for an IEE and sixty for an EIA; confirm current periods.

8. **Environment management plan and implementation.** Before implementing a proposal the proponent must prepare an **environment management plan**. Approval **lapses if implementation does not begin within three years**, and must be **renewed or amended** where scope, technology or location changes — both practical levers.
9. **Monitoring, penalties and restoration.** Compliance reporting continues during implementation. Implementing **without approval** attracts fines, suspension and **liability for environmental restoration**, and the Act allows recovery of **compensation for ecological restoration**.

The rulebook — the policies that decide the outcome

- **The Environment Protection Act, 2019 and Rules, 2020.** Was assessment required and obtained before implementation? Was the correct **tier** applied? Was the **ToR** approved and adequate? Was the report **displayed at the ward office and the site**? Was the **mandatory public hearing** held **in the affected area**? Was the **local recommendation** obtained? Is the **environment management plan** being implemented?
- **The Constitution. Article 30** — the fundamental right to a clean and healthy environment, and the framework within which the courts weigh environment against development; **Article 51** — the State's obligations on environmental protection and biodiversity; and the Supreme Court's **constitutional jurisdiction**, under which it has invalidated provisions from the outset.
- **Sector law.** Water, electricity, forest and protected-area legislation carry their own licences and prohibitions — and the Court has struck down provisions permitting construction inside **Protected Areas**.

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. Nepal is pursuing rapid expansion in hydropower, roads, transmission, tourism infrastructure and aggregates, much of it in geologically fragile Himalayan and Chure terrain; assessments are commissioned and paid for by proponents; devolution has placed approval powers with local governments that often lack technical staff; and revenue from riverine materials and construction is politically significant at every tier. None of this is unlawful, but it explains the lean — and why the mandatory hearing and the courts matter so much.

The overseers — who watches the decision-makers

- **The Supreme Court** — writ jurisdiction, public interest litigation, and a constitutional bench that has struck down environmental provisions; the source of the reasoning that a clean environment is intrinsic to the right to life.
- **The National Human Rights Commission** — where health, water and displacement engage rights.
- **The Commission for the Investigation of Abuse of Authority and the Auditor General** — misuse of authority and public funds.
- **The local level and its assembly** — recommendation, land use and accountability.
- **A strong public-interest bar and environmental organisations** — Nepal's landmark cases have been driven by advocates and organisations who continue to take such matters.

Naming and using the right body matters: in Nepal the most consequential early judgment is usually **which tier of assessment applies and which government is approving it** — because that determines where your hearing will be and who must recommend.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Nepali and comparable campaigns, not a controlled study. Use them to prioritise effort. The most important lesson for Nepal: the **mandatory hearing** gives every community a guaranteed moment on the record, and the **Supreme Court** has shown itself willing to stop very large projects — so the strategy is to build a clean record at the hearing and be ready to file.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost (NPR)	What "Success" Means
Documentation only	5-10%	1-3	low	Basis for every other step

		months		
Local opposition only	20-35%	6-18 months	low	Local pressure; ward and municipality engage
Turnout and objections at the public hearing	25-40%	1-2 months	low	On record; conditions or rejection
Contesting the assessment tier	25-45%	1-6 months	low	Full EIA required; deeper scrutiny
Withholding the local recommendation	30-50%	3-12 months	low	Approval stalled at source
Objection on ToR or display failures	20-35%	1-3 months	low	Study reopened; process corrected
Complaint of works without approval	30-50%	1-12 months	low	Suspension; fines; restoration liability
Writ petition (Supreme Court)	35-55%	6-36 months	low-moderate	Interim order; approval quashed; project halted
Media only	15-25%	1-6 months	low	Public and political pressure
Docs + local opposition + media	30-45%	6-18 months	low-moderate	Pressure plus a stronger case
All steps combined	50-70%	9-36 months	low-moderate	Approval refused or quashed, tier raised, works halted, project redesigned or abandoned

Key insight: all steps together are far more effective than any single one — and Nepal has two multipliers. The first is that the **public hearing is mandatory at every tier and must be held in the project-affected area**, with the report displayed at the **ward office and the project site** — so no community should be excluded on paper. The second is the **Supreme Court**, which has halted a national airport, ordered a climate law by mandamus, struck down provisions permitting construction in protected areas, and described large-scale range destruction as **ecocide**. The distinctive disadvantages are proponent-funded studies of variable quality, and devolution that has handed approval powers to local governments without the technical capacity to exercise them.

A note on cost: attending the hearing, filing objections, and approaching the ward and municipality cost almost nothing. Writ petitions are comparatively inexpensive and Nepal's public-interest bar has carried the landmark cases. The expenditure that most changes outcomes is independent technical evidence — geology and slope stability, hydrology, forest and biodiversity — and Nepal's universities and professional bodies are realistic sources.

Effectiveness Visualization

SUCCESS PROBABILITY (approval refused or quashed, tier raised, works halted, project redesigned or abandoned)

FAVOURABLE SCENARIO (hearing defect or wrong tier, fragile terrain or protected area, local level sympathetic, evidence obtained):

All steps combined: 50-70%
Writ petition: 35-55%
Local recommendation: 30-50%
Single step: 5-50%

TILTED SCENARIO (national priority project, approval granted, works advanced, local level supportive of the proponent):

All steps combined: 30-45%
Writ petition: 25-40%
Local + media: 15-30%
Single step: 3-15%

How to read this honestly. In Nepal the strongest procedural facts are: **no hearing held, or a hearing held outside the project-affected area**, when the law makes it mandatory at every tier; the report **never displayed at the ward office or the site**; a project routed through a **Brief Environmental Study or IEE** when its scale and location require a **full EIA**; **implementation begun without approval**, which brings fines, suspension and restoration liability; or approval relied upon **more than three years** after it was granted without implementation having begun. The strongest substantive facts concern **slope, forest, river systems and protected areas** in fragile terrain — the ground on which the Supreme Court has been most willing to act. What is harder is defeating a project of declared national priority that has completed a full EIA with a genuine hearing; there the realistic gains are conditions, redesign and monitoring. Judge success accordingly, and note that Nepali outcomes have included a national airport halted outright.

Step Importance Ranking (When All Combined)

1. **Legal challenges** — the writ petition, given a court with a demonstrated willingness to act.
2. **Local opposition** — because the **hearing** and the **local recommendation** are both community-facing choke points.
3. **Documentation** — the evidence that makes both the hearing and the petition serious.
4. **The administrative route** — tier challenge, ToR, display and hearing defects.
5. **Media** — which reaches the public-interest advocates who bring these cases.

Winning Nepali campaigns combined a well-attended mandatory hearing, documented procedural defects, independent technical evidence on slope or hydrology, engagement with the ward and municipality, and a writ petition grounded in Article 30.

What Nepali Campaigns Actually Show

A few patterns recur. **The right is constitutional and substantive** — **Article 30** guarantees every citizen the right to live in a **clean and healthy environment**, and since the **Godavari Marble** litigation the Supreme Court has treated a clean environment as **intrinsic to the right to life**, reasoning that the State, as guardian of citizens' interests, must protect it. **The Court acts on large projects** — it **halted the Nijgadh international airport**, which would have felled thousands of trees. **It has used the strongest available language** — in the **Chure** case, against a budget provision authorising extraction and export of riverine materials from an ecologically critical range whose degradation was worsening flooding and desertification in the Terai, the Court held **environmental sustainability is the most fundamental constitutional principle and no economic activity can bypass it**, said the destruction amounted to **ecocide**, ordered a **nationwide halt to riverine-material exports until protective legislation was enacted**, and urged recognition of an **intergenerational obligation**. **It compels legislation** — issuing **mandamus ordering the government to pass a climate change law**. **It strikes down laws** — a 2025 **constitutional bench** invalidated, from the outset, provisions permitting construction inside **Protected Areas**. **And participation is now guaranteed** — the 2019 Act and 2020 Rules made the **public hearing mandatory at all levels** and devolved approval to provincial and local governments. The through-line: **use the hearing, use your municipality, and remember the Court has stopped bigger projects than yours**.

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified. Answer five questions, and write the answers in a shared document — this becomes the campaign's factual spine.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get the specifics: exact location and extent, project type and stage, and what is there now — **rivers and khola, springs and drinking-water sources, irrigation canals, forest and community forest, terraced farmland, slopes and landslide-prone ground, protected areas and their buffer zones, and homes**. Obtain the **Brief Study, IEE or EIA** and list every admitted impact with its page reference. Pay particular attention to **slope stability and landslide risk, river and riverine material extraction**, and **forest and protected-area status** — the issues on which Nepali courts have been most responsive.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) the **tier** — Brief Environmental Study, IEE or EIA; (b) **which government approves it** — the environment ministry, a sectoral ministry, the province, or your own **municipality or rural municipality**; (c) which **ward** hosts the display and the hearing; (d) whether the **local recommendation** has been sought or given; and (e) whether the site touches a **protected area, buffer zone, community forest** or the **Chure** region.

Question 3: What Specific Action Stops It?

A project can be stopped or reshaped at several points: the **tier raised** to a full EIA; approval **refused or conditioned**; the **local recommendation withheld**; the **hearing** forcing changes on the record; works **suspended for proceeding without approval**, with fines and restoration liability; an **interim order** or quashing on a writ petition; or an approval that **lapses after three years**. Map them and pursue at least two.

Question 4: When Is the Decision Final?

Diarise carefully. The **public notice** period is short — historically fifteen days from newspaper publication — so someone must watch for it. The **public hearing** date is your guaranteed moment; confirm it will be **in the project-affected area**. Statutory **approval periods** are short as well, historically twenty-one days for an IEE and sixty for an EIA, so the window between hearing and decision is narrow. For the courts, file a **writ petition promptly** and seek an interim order where works are advancing, because slope excavation and felling cannot be undone. Confirm all current periods.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: the proponent and any foreign investor or lender; whether the project is designated a **national priority**; which **licensed consultant** prepared the study and whether the licence is current; whether the local level has an interest in revenue from the project or from riverine materials; and what other projects share the same river or slope. Use public sources — the Gazette, ministry records, the local government's decisions, and the company registry. Build a dated, sourced timeline.

Output of Step 1: a one-page fact sheet with the project's description, its tier and approving government, the ward hosting the hearing, the local recommendation position, the protected-area status, every deadline, and the money map.

Worked example: which lever is actually open

Suppose a road or quarry is proposed on an unstable slope above a village, taking community forest and threatening the spring that supplies the settlement. Working the questions: **Q1** — you record the spring, the forest, the slope and the houses below it, dated. **Q2** — you establish the **tier** and, crucially, **which government is approving it**: if it is your own **municipality**, the decision-maker is a body you can reach directly, and the **local recommendation** is in local hands. **Q3** — the live levers are: contesting the **tier**, since a project on landslide-prone ground above a settlement arguably requires a **full EIA**; ensuring the **mandatory hearing** is held **in your ward**, and filling it; pressing the ward and municipality to **withhold or condition the recommendation**; and, if approval issues on a defective process, a **writ petition** under **Article 30**, with an interim order. **Q4** — you watch for the newspaper notice and the display at the ward office, because the periods are short. **Q5** — the records show the proponent and the consultant. In an afternoon you know that **the tier, the hearing and the local recommendation are the campaign — and the Court is the backstop**.

STEP 2: DOCUMENTATION

Documentation in Nepal has three destinations: the **mandatory public hearing**, where the community speaks on the record in its own area; the **local government**, whose recommendation is part of the file; and the **Supreme Court**, which has shown itself willing to act on well-evidenced environmental claims. Build for all three — and, because the hearing is spoken and the notice periods are short, build fast.

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the works.

Water first. Document springs (*mul*), streams (*khola*), rivers, irrigation canals (*kulo*) and drinking-water systems: location, flow, seasonality, and the households and fields depending on each. Photograph from **fixed points**, dated, and obtain any drinking-water users' committee records.

Slope and hazard. This matters more in Nepal than in most systems. Document gradients, existing cracks, past landslides and their dates, drainage and gully lines, and the settlements and roads below. Photographs after monsoon rain are particularly telling. Slope stability is where Nepali projects most often cause irreversible harm and where technical evidence is most persuasive.

Forest and protected status. Establish whether the land is **community forest**, national forest, inside a **protected area or buffer zone**, or in the **Chure**, and obtain the documentation — the position differs sharply by category, and the Court has struck down provisions permitting construction inside protected areas.

Land, farming and homes. Document terraces, irrigated fields, orchards, grazing, and houses and their distance from the works.

How to hold it. Keep everything dated, located and backed up, held collectively.

LAYER 2: TIER AND PROCESS ANALYSIS

Show what the project would do and whether the process was properly run. Catalogue four things:

1. **The tier.** Is the project on a **Brief Environmental Study**, an **IEE**, or a full **EIA** — and is that right for its scale, its location on unstable ground, and its proximity to forest or protected areas? A project routed to a lighter tier has escaped the deeper study, and contesting that is the highest-value early argument.
2. **Terms of Reference.** Obtain the approved **ToR**. Does it cover the spring, the slope, the community forest, the settlements below, and the cumulative effect of other projects on the same river or ridge? Omissions in the ToR become omissions in the study.
3. **Notice, display and hearing.** Record: the date of the **national newspaper notice**; whether the report was actually **displayed at the local government office, the ward office and the project site**; and whether the **public hearing** was held, **in the project-affected area**, with adequate notice and in a language people understand. The hearing is mandatory at every tier, so its absence or relocation is a serious defect.
4. **The study's substance and the management plan.** Mine the report for admitted impacts with page references, and identify omissions — slope stability, downstream water users, cumulative effects, and vague mitigation. Where approval exists, obtain the **environment management plan** and check performance.

Get expert eyes on it. A signed technical opinion carries far more weight at a hearing, before a municipality and before the Court. Nepal's universities and professional bodies of engineers, geologists and foresters are realistic sources; for **slope stability and hydrology**, an independent opinion is what converts conviction into a fact a judge can act on.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate harm into human terms, which is how the Article 30 argument becomes concrete:

- **Water and health** — households whose drinking or irrigation source is threatened, distances to alternatives, and contamination or dust risk.
- **Hazard to life and property** — houses, schools and roads below an unstable slope; not merely environmental but a risk to life, and say so plainly.
- **Livelihoods** — terraces, orchards, forest products, fishing and small tourism enterprises, quantified per household where possible.
- **Community forest and shared resources** — what the community and future generations collectively lose, echoing the Court's own intergenerational reasoning.

Package this layer twice: a rigorous version in **Nepali** for the hearing, the municipality and the file, and a short spoken version — three facts and one image — because the hearing is oral and time is limited.

How to Structure Your Documentation

- **Phase 1: Baseline (Weeks 1-3)** — water, slope, forest status, fixed-point photographs.
- **Phase 2: Process (Weeks 1-4)** — the tier, the ToR, the notice, the display, the hearing date.
- **Phase 3: Technical evidence (Months 1-2)** — a signed opinion on slope or hydrology, ready for the hearing.
- **Phase 4: Compliance (ongoing)** — the environment management plan and monitoring after any approval.

Common Documentation Pitfalls (What Fails)

- **Missing the newspaper notice** — the period is short; assign someone to watch for it.
- **Accepting the tier** — it determines the depth of everything that follows.
- **Not recording the display** — check the ward office and the site in person, on a dated visit.
- **Treating the hearing as a formality** — it is mandatory at every tier and is your guaranteed record.
- **No slope evidence** — in Nepali terrain this is frequently the decisive technical question.
- **Only written material** — the hearing is spoken; prepare short, clear interventions.

Documentation Budget Breakdown (NPR)

Item	Low (volunteer/university)	Higher (commissioned)
Fixed-point photography, GPS	minimal	modest
Copies of the report and ToR	modest	modest

Slope or hydrology opinion	often via university	moderate
Water testing	modest	moderate
Legal support (writ)	often pro bono	moderate
Travel, printing, translation	modest	modest

Most of this is inexpensive. Spend where it counts: an **independent slope or water opinion**, and travel to the district or Kathmandu when filing.

WHAT TO GATHER, AND WHERE TO FIND IT

Much of what decides a Nepali case is documentary, and — unusually — some of it must be brought to your own ward.

The approving authority. The **Brief Study, IEE or EIA**, the approved **Terms of Reference**, the record of the **public hearing**, the approval with its conditions, and the **environment management plan**. Identify first whether that authority is the environment ministry, a sectoral ministry, the province, or your **municipality**.

The ward office and the local government office. The law requires the report to be **displayed** there. Go in person on a dated visit and record whether it is available — and obtain the **local recommendation** or the record of its absence.

The project site. The report must also be displayed at the site; photograph what is and is not there.

The newspaper notice. Collect the published notice with its date; the comment period runs from it.

Forest and protected-area records. Community forest user group documents, forest office records, and protected-area or buffer-zone boundaries — the status shaping both the tier and the constitutional argument.

Consultant licensing. The identity and licence status of the consultant who prepared the study.

Company and Gazette records. The proponent and its investors; the Gazette for notifications, including any designating programmes for strategic assessment.

How to force a document open. Nepal has right-to-information legislation with designated officers and an appeal route, and the framework itself requires display and notice. Make requests in writing to the approving authority and the local level, keep proof, and treat non-display or refusal as a documented defect — evidence for both the hearing and a writ petition.

Free and low-cost help. Nepal has an experienced public-interest bar and organisations that brought the landmark cases, alongside universities and professional bodies. **Approaching them early is the highest-value single step** — they know the tiers, the deadlines and the Court.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to the approving authority and the sector licence, and the local-ally entries point you to organisations and advocates already working nearby.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

In Nepal, organising has two specific targets that exist nowhere else in quite this form. The first is the **mandatory public hearing**, which must be held **in the project-affected area** at every tier of assessment — a guaranteed moment that belongs to the community and is wasted if nobody prepares for it. The second is the **local level**: since federalisation, your **ward and municipality** may be the approving authority, and in any case the **recommendation of the local level** forms part of the file. That means the people who decide, or who must recommend, are often neighbours — reachable, accountable, and facing local elections.

Three principles carry special weight here: **prepare for the hearing as the main event** (short spoken interventions with a name, a place and a number, not a long written submission); **work the ward and the municipality deliberately** (a withheld or conditioned recommendation stalls a project at source); and **get slope and water evidence early**,

because in Nepali terrain that is what turns local knowledge into a fact a court will act on.

PHASE 1: FOUNDATION (Weeks 1-3)

Step 1a: Start with the most affected — and find the notice. Reach the households whose water, land, forest or homes are at stake, and assign someone to watch the **national newspapers** for the notice and to check the **ward office, the local government office and the project site** for the displayed report. Begin fixed-point photographs of the spring, the slope and the forest.

Step 1b: Affinity groups by concern. Let people join through drinking water, irrigation, landslide risk, community forest, farmland or grazing. Where a **community forest user group** or **drinking-water users' committee** exists, engage it immediately — established institutions with standing and records.

Step 1c: Establish the tier and the approving level, and get advice. Find out whether the project is on a **Brief Study, IEE or EIA**, and **which government approves it**. Contact an environmental organisation or advocate early; the tier can be contested and the deadlines are short.

PHASE 2: PUBLIC LAUNCH (Weeks 3-8)

Step 2a: Community meeting before the hearing. Inform, decide collectively, and choose who will speak. Explain that the hearing is **mandatory and must be held in the affected area** — communities often do not know this.

Step 2b: Prepare the hearing. Prepare a handful of **short spoken interventions** — water, slope, forest, homes below — each with a named person, a specific place and a number, and support anyone nervous about speaking. Prepare written objections to hand in as well, and keep copies.

Step 2c: Record the process. Photograph the newspaper notice, the display (or its absence) at the ward office and the site, and the hearing itself — attendance, venue, language, who was allowed to speak, what was answered. If the hearing is scheduled outside the affected area, object in writing before it happens.

Step 2d: Go to the ward and the municipality. Ask, in writing, whether the **local recommendation** has been sought, and press the ward and municipal assembly to withhold or condition it (Section 8D).

Step 2e: Media at launch. Time coverage to the notice or the hearing.

PHASE 3: COALITION EXPANSION (Months 2-6)

Step 3a: Broaden the alliance. Bring in downstream and downslope settlements, neighbouring wards and municipalities, **community forest user groups**, water and irrigation committees, farmers' groups, schools and health posts below the slope, universities, and national organisations and advocates.

Step 3b: Coalition agreements. Agree who speaks at the hearing, who approaches the municipality, who holds documents, and who would be named in any writ petition.

Step 3c: Commission the technical opinion. Obtain a signed opinion on **slope stability** or **hydrology** from a university or professional body. This is the single input that most often decides Nepali cases.

PHASE 4: SUSTAINED PRESSURE (Months 3-12)

Step 4a: Press the approving authority. Submit the technical opinion and written objections; contest the **tier** formally; and demand that defects in notice, display or hearing be remedied.

Step 4b: File the writ petition. Where approval issues on a defective process, or works begin without approval, file a **writ petition** grounded in **Article 30** and the State's obligations, seeking an **interim order** where excavation or felling is imminent (Section 8F). Nepal's courts have halted very large projects.

Step 4c: Enforce afterwards. Where approval stands, obtain the **environment management plan** and monitor it; report non-implementation; and watch the **three-year lapse** and any change of scope requiring renewal.

Step 4d: Public actions. Assemblies, processions, memoranda to the ward and district, and press conferences are common and lawful. Keep them peaceful and orderly, take advice before actions at the site, and note the sharper instruments here are the hearing, the municipality and the Court.

Worked example: a community that unlocks the strong levers

A village learns that a road and quarry are planned on the slope above it, taking part of the community forest and crossing the gully that feeds the village spring. Anger rises and a blockade is proposed. What converts the anger into force happens differently. First, someone watches the **national newspapers** for the notice and checks the **ward office and the site** for the displayed report — and finds it displayed nowhere, which is recorded in writing that week. Second, the community establishes that the project is on an **IEE** although it sits on landslide-prone ground above a settlement and takes community forest, and files a written argument that it requires a **full EIA**. Third, the **community forest user group** and the **drinking-water committee** supply years of records, and a **university geologist** signs a short opinion on slope stability. Fourth, the community prepares for the **mandatory hearing** — insisting it be held **in their own ward**, and arriving with six short spoken interventions, each naming a household, a spring or a house below the cut. Fifth, they ask the **municipality** in writing whether the **local recommendation** has been sought, and press the ward assembly to withhold it. When approval issues despite the undisplayed report and the wrong tier, an advocate files a **writ petition** under **Article 30** seeking an **interim order** before excavation begins. The lesson generalises: **in Nepal the notice you catch in week one and the hearing you fill in week six are what make the writ petition credible — and your own municipality may hold the decision.**

Opposition Building Budget: Year-Long Campaign (NPR)

Low. The recurring costs are travel within the ward and to the district headquarters or Kathmandu, printing objections and materials, communications, meetings, and copies. The expenditure worth prioritising is an **independent slope or hydrology opinion**, and travel for filing. Legal support is frequently provided by the public-interest bar. Keep transparent accounts, and note that the practical constraint here is usually **speed and technical evidence**, not money.

STEP 4: LEGAL CHALLENGES

Nepal offers communities a guaranteed administrative moment, a local-government choke point, and a court with an exceptional record. Three tracks — the assessment process, the local level, and the Supreme Court.

TRACK 1: THE ASSESSMENT PROCESS (the front door)

- **Contest the tier.** Whether a project takes a **Brief Environmental Study**, an **Initial Environmental Examination** or a full **Environmental Impact Assessment** determines the depth of study and scrutiny. Where a project sits on unstable ground, takes community forest, affects a protected area or buffer zone, or lies in the **Chure**, argue in writing that it requires the fuller tier.
- **Attack the ToR.** The **Terms of Reference** must be approved before the study begins. Where it omits the spring, the slope, the settlements below or the cumulative effect of other projects on the same river or ridge, say so — omissions there produce omissions in the study.
- **Enforce notice and display.** The proponent must publish a **notice in a national newspaper** and **display the report at the local government office, the ward office and the project site**. Check each in person on a dated visit and record any failure.
- **Insist on the hearing, in your area.** The **public hearing is mandatory at every level of assessment** and must be conducted **in the project-affected area**. Object in writing if it is scheduled elsewhere, and document how it is actually run.
- **Object substantively**, and press for verifiable conditions and a meaningful **environment management plan** — that is what you will later enforce.

TRACK 2: THE LOCAL LEVEL (the choke point)

- **The recommendation.** A **recommendation from the local level** is among the documents required. Ask the ward and the municipality, in writing, whether it has been sought and on what basis. A recommendation withheld, or granted only on conditions, stalls a project at source.
- **The approving authority may be local.** Under the 2019 Act and 2020 Rules, **provincial and local governments conduct and approve** assessments for proposals at their level — so for many projects the decision-maker is your own municipality, reachable directly and politically accountable.
- **Land use and local decisions.** The local level also decides on land use and infrastructure, which can be pressed independently.

TRACK 3: THE SUPREME COURT (the decisive route)

- **Writ petitions and public interest litigation.** Citizens and organisations may bring **writ petitions**, including in the public interest — a route available in Nepal since the 1990s and used continuously since.
- **The constitutional grounds. Article 30** — the fundamental right to live in a **clean and healthy environment**; **Article 51** — the State's obligations on environmental protection and biodiversity; and the Court's own doctrine, from **Godavari Marble** onward, that a clean environment is **intrinsic to the right to life**.
- **What the Court has actually done.** It **halted the Nijgadh international airport**; held in **Chure** that **environmental sustainability is the most fundamental constitutional principle and no economic activity can bypass it**, characterising the destruction as **ecocide** and ordering a **nationwide halt to riverine-material exports**; issued **mandamus ordering a climate change law**; and, through a **constitutional bench**, struck down provisions permitting construction inside **Protected Areas**.
- **Ask for an interim order.** Where excavation, felling or river works are imminent, seek interim relief — the harm in Nepali terrain is frequently irreversible, and the Court has been receptive to that reasoning.
- **Restoration and compensation.** The Act provides for **liability for environmental restoration** and recovery of **compensation for ecological restoration**, so remedies are not limited to quashing.

The three legal challenge types

TYPE 1: THE ASSESSMENT PROCESS (the front door)

Tier challenge, ToR, notice and display, the mandatory hearing in the affected area, and conditions.

TYPE 2: THE LOCAL LEVEL (the choke point)

The local recommendation, and — increasingly — the local government as the approving authority itself.

TYPE 3: THE SUPREME COURT (the decisive route)

Writ petitions and public interest litigation on Article 30, with interim orders, restoration and compensation.

Legal Strategy Decision Tree

1. **What tier, and which government approves?** → Establish both first; if the approver is your municipality, act locally and immediately.
2. **Was the report displayed at the ward office and the site?** → Check in person on a dated visit; record any failure in writing.
3. **Is the hearing scheduled outside the affected area, or not at all?** → Object in writing before it happens; it is mandatory at every tier.
4. **Has the local recommendation been sought?** → Press the ward and municipality to withhold or condition it.
5. **Has approval issued on a defective process, or have works begun without approval?** → File a **writ petition** and seek an **interim order**.

Litigation Success Factors

A documented tier error; proof that the report was never displayed or the hearing never held in the affected area; a **signed slope or hydrology opinion**; evidence of protected-area, buffer-zone or community-forest status; named petitioners with a real connection to the place; an express request for an **interim order**; and speed, because excavation and felling cannot be undone.

What to Avoid: Legal Failures

Missing the newspaper notice; treating the hearing as a formality when it is the guaranteed record; accepting a lighter tier without argument; ignoring the local recommendation, which may be the fastest brake available; and delaying a petition while works advance on an unstable slope.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when aimed at a specific ground. Here is how the records you gathered map onto the arguments that most often work in Nepal.

No public hearing, or a hearing held outside the affected area → breach of a mandatory requirement. Feed it with: the venue, the distances, the notice, and who could not attend.

Report never displayed at the ward office or the project site → defective process. Feed it with: your dated visits and photographs of what was and was not there.

A project on unstable ground or in community forest routed to a lighter tier → wrong tier; full EIA required. Feed it with: the slope opinion, the forest status, and the project's real scale.

Terms of Reference omitting the spring, the slope or cumulative effects → the study is flawed at the root. Feed it with: the approved ToR and the omissions.

Works begun without approval → fines, suspension, restoration liability. Feed it with: dated photographs and the absence of any approval.

Threat to drinking water or irrigation → Article 30 and the right to life. Feed it with: the users' committee records, households served, and the hydrology opinion.

Landslide risk to homes below → risk to life, stated plainly. Feed it with: gradients, past slides with dates, and the settlements downslope.

Protected area, buffer zone or Chure → the strongest constitutional territory. Feed it with: the boundary documentation — and note the Court has struck down provisions permitting construction inside protected areas.

The pattern: **lead with the mandatory hearing and the tier**, prove slope and water with a signed opinion, and plead the constitutional right and irreversibility.

STEP 5: MEDIA STRATEGY

Media matters in Nepal because environmental disputes over rivers, forests and mountain slopes reach national attention quickly, and because coverage is how communities reach the advocates who bring these cases.

How Journalists Actually Work

Reporters need a hook, a human face, a conflict, and a document. Hand them the notice nobody saw, photographs of the ward office where the report was never displayed, a named farmer whose spring is threatened, and the geologist's opinion. Make it easy, and never give a fact you cannot stand behind.

The Newsworthiness Formula

Local stakes + a credible threat + a documented procedural failure + a David-and-Goliath frame + a strong image = coverage. Three angles reliably travel in Nepal: **landslide risk and unstable slopes, drinking water and springs**, and **forest, protected areas and the Chure** — with a fourth, **a mandatory hearing that was never held where the law says it must be**.

Know the Outlets That Cover This Beat

Map the national dailies in **Nepali and English** and their environment correspondents, the broadcasters, online outlets covering environment and infrastructure, and **local FM radio**, which reaches wards directly in the local language.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable contact. One trusted relationship beats a dozen releases. Offer a site visit and access to households, and be scrupulously accurate — with national infrastructure involved, one unsupported claim dismisses the rest.

Why media matters even when it doesn't make the front page

Coverage reaches the university geologist whose opinion your case needs, the advocate who will file the writ, the ward chair deciding on the recommendation, and the officials who set the hearing venue. It also creates a dated record of what the community said and when.

Sample Media Timeline

Launch with the notice or the undisplayed report; refresh at each milestone — the hearing and how it was run, the tier challenge, the local recommendation, the approval, the writ filing and any interim order.

Media Measurement

Track coverage, but measure what matters: whether the report gets displayed, whether the hearing is moved to your area, whether the municipality acts on the recommendation, whether the tier is revisited, and whether works have stopped.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, dated and sourced. File them at the ward office, the municipality or the approving authority against a stamped receipt (*darta*), and keep proof — in Nepal the dated record of a defect is what carries both the hearing and the writ. Have an advocate review anything heading to court.

8A. Email to a reporter (story pitch)

Subject: [Ward, Municipality, District]: [project] on the slope above [village] — report never displayed, hearing set outside the affected area

Dear [name],

A [road / quarry / hydropower / transmission] project is proposed at [location], on the slope above [village], taking [area] of community forest and crossing the gully that feeds the spring supplying [number] households.

The notice appeared in [newspaper] on [date]. We visited the **ward office**, the **municipality office** and the **project site** on [dates]: the report was **not displayed** at any of them — photographs attached. The public hearing has been scheduled at [venue], [distance] from the affected village, although the law requires it in the project-affected area.

[Where relevant: the project is being processed as an [IEE], although it lies on landslide-prone ground above a settlement and takes community forest.]

I can take you up to the site and connect you with affected households. Could we speak this week?

[Name] · [Community organisation / user group] · [phone] · [email]

8B. Written objection and request that the hearing be held in the affected area

To: [The approving authority — Ministry of Forests and Environment / concerned ministry / Province / Municipality] **Subject:** Objection to the [Brief Study / IEE / EIA] for [project], and request that the public hearing be held in the project-affected area

We, residents of [village, Ward No. __, Municipality], submit the following:

1. **Water.** The project affects [spring / khola / kulo] supplying [number] households and irrigating [area]; the report addresses this at page __ but does not assess [specific omission].
2. **Slope and hazard.** The site lies on ground with gradients of __ and a history of landslides in [years]; [number] houses, [school / health post] and the road lie below the proposed cut. We attach a technical opinion from [university / professional].
3. **Forest and protected status.** The project takes [area] of [community forest / forest inside a buffer zone], per the attached documentation.
4. **Cumulative effects.** [Number] other projects on the same river or ridge are not assessed together.
5. **Process.** The report was not displayed at [ward office / municipality office / project site] on our visits of [dates] — photographs attached.

We request that the report be rejected or the project reassessed; and that the **public hearing be conducted in the project-affected area**, at [proposed venue in the ward], in [language], as the law requires.

[Names, ward, date — keep the stamped copy]

8C. Written request that the project be reassessed at a higher tier

Subject: Request that [project] be subjected to a full Environmental Impact Assessment

To [the approving authority]:

We understand that [project] at [location] is being processed as a **[Brief Environmental Study / Initial Environmental Examination]**. We respectfully submit that it requires a **full Environmental Impact Assessment**, because: 1. **Location**. The site lies [on landslide-prone ground above the settlement of ___ / within ___ of the boundary of ___ protected area or buffer zone / in the Chure region]. 2. **Forest**. It requires clearance of [area] of [community forest / national forest]. 3. **Water**. It affects the source supplying [number] households and irrigating [area]. 4. **Scale**. [Length, volume, capacity, excavation.] 5. **Cumulative effects**. [Other projects on the same river or ridge.]

We request reassessment at the higher tier, and that no approval be granted in the meantime.

[Names, ward, date; keep the stamped copy]

8D. Letter to the ward and municipality on the local recommendation

To: The Chairperson, Ward No. __, and the Mayor/Chairperson, [Municipality/Rural Municipality] Subject: Regarding the recommendation of the local level for [project]

Respected sir/madam,

We, residents of Ward No. __, request: 1. confirmation whether a **recommendation of the local level** has been sought or issued for [project] at [location], and on what date and on what information; 2. copies of the relevant decisions of the ward and the municipal assembly; 3. confirmation whether the report was **displayed at the ward office and the municipality office**, and for what period.

We further request that the local level **withhold its recommendation**, or issue it only on strict conditions, until: the project is assessed at the appropriate tier; the public hearing is held in this ward; and the risks to [the spring / the slope above the settlement / the community forest] are properly addressed.

We request an opportunity to present our concerns to the ward and to the municipal assembly.

[Names, ward, date]

8E. Complaint of works begun without approval

Subject: Complaint — works commenced without environmental approval at [location]

To [the approving authority], copy: [Municipality], [District Administration Office]:

We report that since [date], at [location], [excavation / tree felling / road cutting / river extraction] has been carried out, although to our knowledge no [Brief Study / IEE / EIA] has been approved for this project. We attach dated, geo-referenced photographs taken on [dates].

Implementing a proposal without approval attracts penalties, suspension and **liability for environmental restoration**.

We request **immediate inspection**, suspension of the works, and enforcement action, and that we be informed of the action taken.

[Names, ward, date]

8F. Instruction to an advocate (writ petition)

Subject: Proposed writ petition — [project], [location]

Respected [advocate],

[Approval for [project] was granted by [authority] on [date] / works have commenced without approval since [date].]

We seek your advice on filing a **writ petition** before the Supreme Court, in the public interest, with an application for an **interim order**.

Proposed grounds: (i) the **public hearing** was [not held / held outside the project-affected area], although mandatory at every level of assessment; (ii) the report was **not displayed** at the ward office, the municipality office or the project site — dated photographs attached; (iii) the project was processed at the **wrong tier**, given its location on

landslide-prone ground above a settlement, its taking of community forest, and its proximity to [protected area]; (iv) the **Terms of Reference** omitted [the spring / the slope / cumulative effects]; and (v) the project infringes the right to live in a **clean and healthy environment** under **Article 30**, and the State's obligations under **Article 51**.

We can provide: the report and approved ToR; dated photographs and our record of visits; the technical opinion of [university/professional] on slope stability; community forest and water users' committee records; our objections of [date] with stamped receipts; and correspondence with the ward and municipality.

Interim relief is urgent: excavation is expected to begin on [date], and slope cutting and felling cannot be undone.
[Name, community organisation, date]

8G. Press release (effective)

PRESS RELEASE — [date]

Residents of [Ward __, Municipality] object to [project]: report never displayed, hearing set outside the affected area

Residents of [village], together with [community forest user group / drinking-water committee], have formally objected to [project] at [location] and asked that the **mandatory public hearing** be held in the project-affected area, as the law requires.

"[Short, human quote from an affected resident]," said [name]. The project would take [area] of community forest and cross the gully feeding the spring used by [number] households, on a slope where landslides occurred in [years]. A technical opinion by [university/professional] is attached.

The residents visited the **ward office, the municipality office and the project site** on [dates] and found the report **displayed at none of them**.

Contact: [name, phone]. Photographs, the technical opinion and interviews available.

8H. Report of non-implementation of the environment management plan

Subject: Non-implementation of the environment management plan — [project], approval dated [date]

To [the approving authority], copy: [Municipality]:

The approval dated [date] for [project] required the proponent to implement an **environment management plan** including [list the commitments].

As of [date], the following remain unimplemented: [list, with dated photographs attached]. [In addition, [describe damage: slope failure, sediment in the khola, felling beyond the approved area].]

We request **monitoring and inspection**, enforcement of the plan, and consideration of the penalties and **restoration liability** provided by law. We also note that approval **lapses if implementation does not begin within three years**, and that any change of scope, technology or location requires renewal or amendment.

[Names, ward, date]

Important Caveat

Templates are starting points. Adapt every one to your real facts and attach your evidence. Three things to remember: the **public hearing is mandatory at every level and must be in the project-affected area**, so object **before** it is held elsewhere; the report must be **displayed at the ward office, the municipality office and the project site**, so check in person and photograph what you find; and notice and approval periods are **short**, so assign someone to watch the newspapers. Keep stamped copies of everything, and seek an **interim order** where excavation or felling is imminent.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Nepal rewards a few precise acts taken quickly, because the notice periods are short and the hearing is guaranteed. In rough order of impact for the effort:

1. **Find the notice and the display — in person.** Watch the **national newspapers**, then visit the **ward office, the municipality office and the project site** on dated visits and photograph what is and is not displayed. Non-display is an express breach and a strong ground.
2. **Establish the tier and who approves it.** Is it a **Brief Study, IEE or EIA**, and is the approving authority a ministry, the province, or **your own municipality**? If it is local, the decision-maker is reachable this week.
3. **Insist the hearing be held in your area, in writing** (Section 8B). It is **mandatory at every level** and must be **in the project-affected area** — object *before* it is held somewhere else.
4. **Ask the ward and municipality about the local recommendation** (Section 8D). A withheld or conditioned recommendation stalls a project at source, and this is often the fastest brake available.
5. **Prepare three short spoken interventions for the hearing** — a name, a place, a number each. The hearing is oral, and this is your guaranteed record.
6. **If works have begun without approval, report it immediately** (Section 8E): penalties, suspension and **restoration liability** follow.
7. **Get one signed technical opinion on slope or water** from a university — the input that most often decides these cases — and, if approval issues on a defective process, instruct an advocate to file a **writ petition** with an **interim order** (Section 8F).

If you do only the first three, you have caught the deadline, established who decides, and secured your right to be heard where you live. That is a real contribution, not a token one.

WHEN THE SYSTEM IS TILTED

Nepal's tilt is not the absence of rights or remedies — both are strong — but the speed of infrastructure expansion against the capacity of the institutions meant to assess it.

What This Tilt DOES (and DOESN'T DO)

The tilt means assessments are commissioned and paid for by proponents through licensed consultants whose work is widely criticised; devolution has placed approval powers with **local governments that often lack technical staff**; hydropower, roads, transmission, quarrying and tourism infrastructure are advancing rapidly across geologically fragile terrain; approvals have issued on studies later shown to be defective; and court orders depend on agencies that comply slowly. It does **not** close the doors: the **public hearing is mandatory at every level and must be in the project-affected area**; the report must be **displayed at the ward office, the municipality office and the project site**; a **local recommendation** is required; **Article 30** guarantees a fundamental right to a clean and healthy environment; implementing without approval brings penalties and **restoration liability**; approvals **lapse after three years**; and the **Supreme Court** has halted a national airport, ordered a climate law by mandamus, struck down provisions permitting construction in protected areas, and stopped riverine-material exports nationwide.

Reading Your Tilt: Responsive, Mixed, Entrenched

- **Non-display or no hearing, wrong tier, fragile terrain, local level reachable.** The strongest position: clean procedural defects, a guaranteed hearing, and a municipality you can lobby directly.
- **Mixed.** A process broadly followed but a study that ignores slope, water or cumulative effects. Weight shifts to the technical opinion, the tier argument, conditions, and the local recommendation.
- **Entrenched.** A project of declared national priority with a full EIA, a genuine hearing and approval in place, works advanced. Assume outright annulment is unlikely; concentrate on the **environment management plan**, monitoring, restoration and compensation — and on the three-year lapse and any change of scope requiring renewal.

Documented Nepali Dynamics

The record shows a court prepared to go further than most. **The right is constitutional — Article 30** guarantees every citizen the right to live in a **clean and healthy environment**, and since **Godavari Marble** the Supreme Court has treated that as **intrinsic to the right to life**, reasoning that the State, as guardian of citizens' interests, bears responsibility. **It halts major projects** — the Court **stopped the Nijgadh international airport**, which would have felled thousands of trees. **It uses the strongest framing available** — in the **Chure** case it held that **environmental sustainability is the most fundamental principle of Nepal's constitution and no economic activity can bypass it**, said the destruction amounted to **ecocide**, ordered a **nationwide halt to riverine-material exports until protective legislation was enacted**, and urged recognition of an **intergenerational obligation**. **It compels lawmaking** — it issued **mandamus ordering the government to pass and implement a climate change law**,

reasoning from treaty commitments and the right to a dignified life. **It strikes down statutes** — a **constitutional bench** invalidated, from the outset, provisions permitting construction inside **Protected Areas**. **And the reforms are real** — the 2019 Act and 2020 Rules added a third tier, **devolved approval to provincial and local governments**, and made the **public hearing mandatory at all levels**. The lesson: **the openings are genuine at both ends — your ward and the Supreme Court — and the weakness is in between**.

Assessment Framework — Determine Your Situation

Ask: what tier, and which government approves? Was the report displayed at the ward office, the municipality office and the site? Is the hearing scheduled in the affected area? Has the local recommendation been sought? Is the site on unstable slope, in community forest, in a protected area or buffer zone, or in the Chure? Have works begun without approval? Can we obtain a **signed slope or hydrology opinion**? The answers tell you whether to fight at the hearing, at the municipality, or in the Supreme Court — usually all three.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

Nepali communities use assemblies, processions, memoranda to the ward, district and ministry, sit-ins and press conferences, and civic space is comparatively open. Keep actions peaceful and orderly and take advice before anything at a project site — confrontation with contractors or security on remote hill roads carries real risk, and can shift attention from a strong procedural case to a public-order argument. The strategic point is that Nepal gives you **two institutional openings that work**: the mandatory hearing in your own ward, and a Supreme Court that has stopped very large projects. Public action is most valuable when it supports and publicises those.

Honest Assessment

Tilted fights are harder, and Nepal's difficulty is that assessment capacity has not kept pace with construction. But "harder" is not "hopeless": this is a jurisdiction where the highest court halted a national airport, ordered the government to legislate on climate, invalidated laws permitting building inside protected areas, and stopped an entire export trade in riverine materials pending new legislation. Concentrate force where the tilt is weakest — **the mandatory hearing, the display requirement, the tier, and the local recommendation** — get one signed technical opinion, and be ready to file.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with, or the product of institutions without the staff to do better. But capture is real. Read your situation actor by actor, and publish documents rather than accusations.

The consultant and the study. Proponent-funded, and the quality of Nepali assessments is widely criticised. Signs: slope stability treated in a paragraph, downstream water users unmentioned, cumulative effects ignored, mitigation unbudgeted. Lever: an independent signed opinion and a written tier challenge.

Notice and display. The cheapest way to exclude a hill community is a notice in a paper it does not receive and a report displayed nowhere it can reach. Signs: nothing at the ward office or the site. Lever: dated visits, photographs and a written record — these are express legal requirements.

The hearing venue. A hearing in the district headquarters rather than the affected ward is technically a hearing and practically an exclusion. Lever: object **in writing before it happens**, citing the requirement that it be in the project-affected area.

The local level. Devolution created an opening and a risk: a municipality may be reachable and accountable, or may have a direct interest in project revenue while lacking technical staff. Signs: a recommendation issued without assembly discussion. Lever: written questions, the assembly and publicity — local decisions are locally visible.

Riverine materials. Extraction of stone, gravel and sand is a recurring locus of revenue and abuse, and the Supreme Court has intervened at national scale. Lever: dated documentation and the Court's own reasoning.

How to act on it, safely. Document from the approving authority's file, the ward records and the Gazette before you speak. Route genuine concerns to the approving authority, the **Commission for the Investigation of Abuse of**

Authority, the **Auditor General** for public funds, and the **National Human Rights Commission** where health and displacement are engaged — and above all into your **objections and your writ petition**, where they are protected and consequential. Do not publish unproven accusations about named individuals: the procedural record is stronger evidence and safer ground.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other. In Nepal the timeline is compressed at the front — short notice periods, a hearing that arrives quickly, and short statutory approval windows — and then opens out into litigation and monitoring.

Realistic 12-Month Campaign Timeline

Weeks 1-3 (Catch the process). - Assign someone to watch the **national newspapers** for the notice, and visit the **ward office, the municipality office and the project site** on dated visits to check the **display**. - Establish the **tier** and **which government approves** the project. - Begin **fixed-point photographs** of the spring, the slope, the forest and any works. - Contact an environmental organisation or advocate, and a university department for a technical opinion.

Weeks 3-8 (The hearing window). - Object in writing that the **hearing be held in the project-affected area**, before it is scheduled elsewhere (Section 8B). - File the **tier challenge** if the project is on a lighter instrument than its location warrants (Section 8C). - Write to the **ward and municipality** about the **local recommendation** (Section 8D). - Prepare and deliver **short spoken interventions** at the hearing; hand in written objections; **document how the hearing was run**. - Launch media on the undisplayed report and the hearing venue.

Months 2-5 (Build the case). - Obtain and file the **signed slope or hydrology opinion**. - Broaden the coalition — downslope and downstream settlements, community forest user groups, water committees, neighbouring wards, universities. - Press the approving authority on the **ToR**, the tier and the process defects. - Report any **works begun without approval** immediately (Section 8E).

Months 4-9 (Decision and litigation). - On approval, instruct an advocate to file a **writ petition** with an **interim order** where excavation or felling is imminent (Section 8F). - Continue pressing the municipality; a recommendation withheld or conditioned still matters. - Sustain media at each stage.

Months 9-12 (Enforcement). - Where approval stands, obtain the **environment management plan** and monitor it; report non-implementation (Section 8H). - Watch the **three-year lapse**, and any change of scope, technology or location requiring renewal or amendment.

Beyond 12 months. - Litigation and monitoring run long; keep the photographic record, the user-group records and the coalition intact. - Watch for **new phases and expansions**, each of which reopens assessment.

Warning Signs — Act Early

A notice in a newspaper you do not receive; survey stakes or a bulldozer on the slope above the village; trees marked in the community forest; a hearing announced for the district headquarters; a report said to be displayed that is not at the ward office; a spring running turbid after rain. Each is a trigger to **make a dated visit and write it down that week** — because in Nepal the procedural record you build early is what carries both the hearing and the writ.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: catch the notice and check the display in person; establish the **tier** and the **approving level** first; insist in writing that the **hearing** be in the affected area, and fill it with short spoken interventions; work the **ward and municipality** on the recommendation; obtain one **signed slope or water opinion**; report unauthorised works at once; and file a writ with an **interim order** before excavation. Losing campaigns: miss the notice; treat the hearing as a formality; accept a lighter tier; ignore the local level; and file after the slope has already been cut.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in Nepal takes several forms, and it is worth naming them so you recognise a win when you get one: - the **hearing moved to your own ward** and genuinely held, with your objections on the record; - the **report actually displayed** at the ward office, the municipality and the site; - a project **reassessed at a higher tier**, so the slope, the water and the forest are properly studied; - the **local recommendation withheld or conditioned**, stalling the project at source; - approval **refused, conditioned or quashed**; - **works suspended** for proceeding without approval, with penalties and **restoration liability**; - an **interim order** before excavation, and — as with a national airport — a project **halted outright**; - **restoration and compensation** for ecological damage; - an approval that **lapses** because implementation never began.

Nepali communities, advocates and organisations have obtained all of these.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone. Before the hearing, your leverage is at its height and almost everything is cheap — catch the notice, check the display, insist on the venue, contest the tier. Once approval issues, the question is whether the process was defective and whether harm is imminent; if both, file promptly and seek an interim order, because slope cutting and felling cannot be undone. If a full EIA, a genuine hearing in your area and a considered approval are all in place, the honest answer may be that the project will proceed — in which case shift to the **environment management plan, monitoring, restoration and the three-year lapse**. And if continuing would mean confrontation at a remote site, choose the hearing, the municipality and the Court instead: they have delivered more here than any blockade.

The Bottom Line

Nepal's assessment capacity has not kept pace with its construction: studies are proponent-funded, devolution has handed approval powers to local governments without technical staff, and infrastructure is advancing fast across fragile terrain. But the framework gives communities two openings that genuinely work. At the local end, the **Environment Protection Act, 2019** and **Rules, 2020** made the **public hearing mandatory at every level of assessment** and required it **in the project-affected area**; required the report to be **displayed at the local government office, the ward office and the project site** after a **national newspaper notice**; made a **recommendation of the local level** part of the file; devolved approval to **provincial and local governments**; required an **environment management plan**; and provided that approvals **lapse after three years** while implementation without approval brings penalties, suspension and **liability for environmental restoration**. At the national end stands a Supreme Court that has treated a clean environment as **intrinsic to the right to life** since **Godavari Marble**, **halted the Nijgadh airport**, held in **Chure** that **environmental sustainability is the most fundamental constitutional principle** while describing the destruction as **ecocide** and stopping riverine-material exports nationwide, issued **mandamus ordering a climate law**, and struck down provisions permitting construction inside **Protected Areas** — under a Constitution whose **Article 30** makes a clean and healthy environment a fundamental right. Communities that catch the notice, check the display in person, insist the hearing be held where they live, contest the tier, work their own ward and municipality, obtain one signed opinion on slope or water, and file promptly with a request for an interim order have moved hearings, forced reassessments, stalled approvals and stopped projects. No single step wins; the combination does. Start today by finding the notice — and by walking to the ward office to see whether the report is really there.